

DEPARTMENT OF VETERANS AFFAIRS

Justification and Approval (J&A) For Other Than Full and Open Competition (>SAT)

Acquisition Plan Action ID: 36C244-26-AP-0073

1. **Contracting Activity:** Department of Veterans Affairs, VISN4, NCO4, Construction West, VAPHS University Drive Medical Center, Pittsburgh PA 15240.
2. **Nature and/or Description of the Action Being Processed:** A Centrifugal Chiller (Trane) is required to match and correctly integrate with the 3 existing chillers as part of the VAPHS UD Chiller Plant. The Central Utility Plant and, most specifically, the facility chilled water system is a major, highly specialized system that includes chillers, associated mechanical and piping components inside the plant, electrical infrastructure, cooling towers, and distribution piping. Changing manufacturers will increase the cooling system downtime (the cooling system is used year-round) providing unacceptable delays in fulfilling the requirements to see and treat patients in the hospital. Additionally, utilizing the Trane chiller and the Baltimore Aircoil Company cooling tower avoids substantial duplication of costs by preserving the investment in spare parts and training for maintenance personnel. These items are to be procured using as a Firm Fixed Priced Task order from Pittsburgh MATOC Contracts . [REDACTED]
3. **Description of Supplies/Services Required to Meet the Agency's Needs:** Centrifugal Chiller (Trane). Failing to use a Centrifugal Chiller (Trane) could jeopardize the entire system, and it would at the very least be exponentially more expensive to attempt to integrate a different brand into the existing VAPHS UD Chiller plant array and result in additional training for operators and increase annual maintenance costs.
4. **Statutory Authority Permitting Other than Full and Open Competition:**
 - (x) (1) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements per 41 USC §3304(a)(1) as implemented by FAR 6.302-1;
 - () (2) Unusual and Compelling Urgency per 41 USC §3304(a)(2) as implemented by FAR 6.302-2;
 - () (3) Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services per 41 USC §3304(a)(3) as implemented by FAR 6.302-3;
 - () (4) International Agreement per 41 USC §3304(a)(4) as implemented by FAR 6.302-4
 - () (5) Authorized or Required by Statute per 41 USC §3304(a)(5) as implemented by FAR 6.302-5;
 - () (6) National Security per 41 USC §3304(a)(6) as implemented by FAR 6.302-6;
 - () (7) Public Interest per 41 USC §3304(a)(7) as implemented by FAR 6.302-7;

5. **Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):** Trane chillers and associated cooling towers are already in use and the existing chillers are viable now and well into the future. There are numerous Trane distributors but failure to utilize a Trane Centrifugal Chiller would require the existing 3 chillers to be replaced. The chillers must match or will not work properly. Replacement of the 3 viable, existing chillers would significantly increase the cost of the project.
6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:** There are numerous Trane distributors some with SDVOSB affiliations and the Prime Contractor responsible for acquiring the unit will be an SDVOSB.
7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:** Based on the information above, it is hereby determined that this justification for brand name Trane Centrifugal Chiller and Baltimore Aircoil Company cooling tower essential to the Government's requirements, and market research h indicates other companies' similar products, or products lacking the particular feature, do not meet, or cannot be modified to meet the agency's needs. Therefore, these products will be specified as a brand name for this construction project as only these products meet the Government's needs. This procurement is an RFP, resulting in a firm fixed price contract award. IAW FAR 15.308, the Source Selection Authority's decision shall be based on all source selection criteria in the solicitation and shall document the rational for any business judgements and trade-offs made. The A/E for this contract prepared an independent cost estimate which may be used as part of the contracting officer's fair and reasonable determination. The A/E is a specialty MEP A/E firm and pricing for this item is based on their experience and current market conditions. The overall contract award price shall be determined fair and reasonable based on competition and will include the price of the Trane chiller and Baltimore Aircoil Company cooling tower.
8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:** The COR examined manufacturer's literature from three different major manufacturer (Trane, York, Carrier) and found that while there were many operational similarities between the products, the piping, electrical and size/weight configurations were unique to each manufacturer. Using a chiller from York or Carrier would result in a large increase in costs due to necessary reconfiguration of the chiller water piping system, major alterations to the electrical system and extensive reconstruction of the floor to accommodate different weights and centers of gravity.
9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:** Miller Remick the designer of record investigated *the use of other chillers and the additional cost far outweighed and benefits to the VA and would have resulted in a much more complex and less reliable system*
10. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:** See 9

11. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:** See comments above in sections 3, 5, 6, 7 & 8.

12. **Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

MICHAEL
DWYER

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MICHAEL DWYER
Date: 2025.12.08 08:54:47
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Michael J Dwyer
Chief Engineer, FMS Projects
VA Pittsburgh Healthcare System

Date

13. **Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP:](#)**

a. **Contracting Officer Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

JEFFREY
PRUETT

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Date: 2025.12.08 08:56:36
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Jeffrey Pruett
Contracting Officer, Construction West
NCO4

Date

b. **One Level Above the Contracting Officer (Required over SAT but not exceeding \$750K):** I certify the justification meets requirements for other than full and open competition.

MICHELLE
LAPPEN

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MICHELLE LAPPEN
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Michelle Lappen
Branch Chief, Construction West
NCO4

Date